

§ 311.6. Joinder, severance and consolidation. 1. Two crimes are joinable and may be included as separate counts in the same petition when:

(a) they are based upon the same act or upon the same criminal transaction, as that term is defined in subdivision two; or

(b) even though based upon different criminal transactions, such crimes, or the criminal transactions underlying them, are of such nature that either proof of the first crime would be material and admissible as evidence in chief upon a fact-finding hearing of the second, or proof of the second would be material and admissible as evidence in chief upon a fact-finding hearing of the first; or

(c) even though based upon different criminal transactions, and even though not joinable pursuant to paragraph (b), such crimes are defined by the same or similar statutory provisions and consequently are the same or similar in law.

2. "Criminal transaction" means conduct which establishes at least one crime, and which is comprised of two or more or a group of acts either:

(a) so closely related and connected in point of time and circumstance of commission as to constitute a single criminal incident; or

(b) so closely related in criminal purpose or objective as to constitute elements or integral parts of a single criminal venture.

3. In any case where two or more crimes or groups of crimes charged in a petition are based upon different criminal transactions, and where their joinability rests solely upon the fact that such crimes, or as the case may be at least one offense of each group, are the same or similar in law, as prescribed in paragraph (c) of subdivision one, the court, in the interest of justice and for good cause shown, may upon application of either the respondent or the presentment agency order that any one of such crimes or groups of crimes be tried separately from the other or others, or that two or more thereof be tried together but separately from two or more others thereof. Such application must be made within the period prescribed in section 332.2.

4. When two or more petitions against the same respondent charge different crimes of a kind that are joinable in a single petition

pursuant to subdivision one, the court may, upon application of either the presentment agency or respondent order that such petitions be consolidated and treated as a single petition for trial purposes. Such application must be made within the period prescribed in section 332.2. If the respondent requests consolidation with respect to crimes which are, pursuant to paragraph (a) of subdivision one, of a kind that are joinable in a single petition by reason of being based upon the same act or criminal transaction, the court must order such consolidation unless good cause to the contrary be shown.